

to determine the value of professional services rendered in its court. *Vo v. Las Virgenes Municipal Water Dist.* (2000) 79 Cal.App.4th 440, 446. A declaration attesting to the accuracy of the fee bill is entitled to a presumption of credibility. *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.

In the declaration in support of the motion, Plaintiff/Cross-Defendant Chen requests fees and costs as follows:

- Attorney X. Young Lai: billed \$28,400 (56.8 hours billed at \$500/hour) (66.8 hours were billed, and a deduction of 10 hours was made for the declaratory relief work), and requests a 2.0 multiplier under the lodestar method, resulting in fees of \$56,800.
- Attorney X. Young Lai: billed \$11,850 (17.7 hours at \$500/hour drafting motion and 6 hours of anticipatory billing at \$500/hour).
- \$120 in costs for filing the anti-SLAPP motion and the present motion.

The Court has reviewed the declaration of counsel Lai and the billing ledger attached thereto and presided over the underlying litigation. The Court, cognizant of the prevailing attorney's fees in this county for work of this nature, finds that counsel Lai is entitled to compensation at a reasonable rate of \$400.00 per hour.

Turning next to whether the number of hours incurred by the firm is reasonable, the Court has carefully reviewed the billing ledger attached to the declaration of counsel Lai. The Court finds that the 56.8 hours claimed for the underlying anti-SLAPP motion and the 23.7 hours claimed for the fees motion to be unreasonable and excessive in light of the nature and complexity of the issues presented. A reduction is also appropriate because Plaintiff/Cross-Defendant prevailed only as to two of the three claims. The Court shall reduce the billed/anticipated to be billed hours by 50%. The Court finds that 45.25 hours of time is appropriate, all things considered.

The Court, thus, concludes that Plaintiff/Cross-Defendant is entitled to total fees of \$18,100.00 as well as \$120.00 in costs.

3. CU0002367 Diana Dentoni vs. Patrick Gilmore

Plaintiff apparently reserved a date for the filing of a motion, presumably for leave to file a first amended complaint. Pursuant to Code of Civil Procedure section 1005(b), Plaintiff was required to file and serve a notice of motion and motion at least sixteen court days before the hearing. Moreover, the period of notice is extended by additional days depending on the method of service. *See, e.g.,* Code Civ. Proc. §§ 1005, 1010.6(a)(3). Here, the April 30, 2026, notice of motion is deficient as it does not include a hearing date. The May 5, 2026, notice is also deficient as it references a May 8, 2026, hearing date. The matter is withdrawn from calendar. No motion is set for May 29, 2026 and no action shall be taken in connection with the filed motion unless and until it is duly noticed for hearing and served.